

Sealed Highlighted DOE Cross-Motion and Opposition

Filed: October 27, 2025 **Synthetic docket:** SYN-DMD-25-CV-0914 **Access:** Sealed exercise counterpart

DOE submits this controlled version of its cross-motion to explain semantic relationships using invented terms. Corin Pell appears as fictional government counsel. The agency asks for judgment on Exemptions 7(E) and 7(F), segregability, and maintenance of restricted access to the paired exhibits.

Condition-Aster denotes a dummy decision type; Sequence-Beryl denotes an abstract ordering type; Value-Cinder denotes a fabricated guideline field. Role-Dovetail, Safety-Echo, and Channel-Fable denote fictional human-function, safety, and communication types. None corresponds to a real value, employee, system, or method.

DOE relies on the placement of those labels only as a safe model of the functions described in its declarations. It contends that some relationships would reveal nonpublic implementation or facilitate interference with protective personnel if authentic information were substituted. This record contains no such authentic information.

The thirteen controlled divisions correspond by topic to the public cross-motion but are independently written. Restricted treatment allows the Court to examine DOE's category logic while the public reads a complete legal argument containing approved notices. DOE seeks no authority beyond this fictional case.

Litigation Sequence in the Controlled Record

The request was submitted in June 2024, narrowed through four written exchanges, processed under RLS-OG-001, and affirmed administratively under FAD-OG-1007. Open Grid began suit in April 2025, and DOE answered the following month. Principal declarations and Vaughn materials were filed August 4.

After preserving the original exports, DOE conducted a supplemental search and content review. RLS-OG-002 issued with replacement images and revised category explanations on September 8. Paired sample materials then gave the Court a public presentation and a controlled semantic presentation.

The labels in this filing are not responsive source content. They were created to permit safe adjudication and therefore do not affect the record count. Likewise, a sealed twin and its public counterpart are two judicial access forms for one semantic exhibit, not two agency records.

The motion concerns withholding and access. DOE maintains that Beacon, Driftglass, and Harborline were the repositories reasonably likely to hold the agreed final records and that the staged search was adequate. Open Grid's present challenge does not identify an omitted repository or edition.

Closed-Universe Totals

The search resulted in twelve records totaling 200 pages after 16,842 raw results became 1,284 deduplicated candidates and forty-six items received custodian review. Decision documents account for sixty pages, escalation matrices for fifty-four, coordination appendices for sixty-four, and governance instruments for twenty-two.

Three documents totaling fifty-four pages were retained in full; seven documents totaling 124 pages were disclosed in redacted form; and two documents totaling twenty-two pages were released without removals. The original delivery therefore included 146 images.

Among those images, sixty-eight had no blackout and seventy-eight had at least one. Sixty-two referenced 7(E), fifty-one referenced 7(F), and thirty-five referenced both. The overlap explains why those figures exceed seventy-eight when added. All fifty-four completely withheld pages used 7(E), and thirty-nine also used 7(F).

The supplemental release placed seventeen additional passages on eleven of the existing images. Six images received two passages and five received one. It did not add a thirteenth record, change any page length, or alter the three-seven-two disposition split.

Burdens and Category Proof

DOE accepts its burden under FOIA and the Court's de novo role. It may carry that burden with sufficiently detailed declarations and a category structure rooted in examination of the documents. The description must allow testing without disclosing the information the exemption protects.

A functional category is useful here because the same semantic types recur in related editions. Condition-Aster and Sequence-Beryl identify two kinds of information whose relation is asserted to describe implementation. Value-Cinder identifies a guideline type. Role-Dovetail, Safety-Echo, and Channel-Fable distinguish human-function fields with different documentary uses.

The labels alone are not the evidence. Kira Morrow's custody account explains how the field types operate within the fictional documents, and Elian Voss's review account explains the disclosure consequences DOE predicts. The paired exhibits show the surrounding administrative language.

Segregability is evaluated separately. Reviewers ask whether removing a controlled relation leaves a coherent, informative proposition or instead discloses the relation through placement. DOE contends its final production reflects that analysis and that its declarations permit the Court to verify the result.

Purpose of the Operational Families

The playbooks were compiled for use in preventing, recognizing, and coordinating responses to fictional unlawful attacks. Their protective function supplies the qualifying law-enforcement purpose. The conclusion does not rest on DOE's institutional identity or on a generalized claim of sensitivity.

The released governance records illuminate the boundary. They show when editions were approved and replaced, but they do not organize a response. The playbooks contain administrative information of that kind alongside controlled relationships, and DOE produced it when it could be detached.

The requester excluded event files, technical settings, code, credentials, access records, diagrams of real infrastructure, and personal contact information. The retained operational frameworks still concern implementation within the exercise. Removing live data from scope did not turn Condition-Aster, Sequence-Beryl, or Value-Cinder into mere governance.

DOE agrees that each withholding must fit a subpart of Exemption 7. It invokes the threshold to explain the documentary setting in which the semantic relationships acquire their asserted protective function, not as a substitute for the remaining analysis.

Technique, Procedure, and Guideline Fields

Condition-Aster represents a decision predicate type and Sequence-Beryl a relative-order type. In the controlled samples, their relation marks the organization DOE characterizes as a nonpublic technique or procedure. Public familiarity with generic triage would not reveal that organization.

Value-Cinder marks a classification-guideline type. DOE predicts that disclosure of an authentic value and its relation could permit a hypothetical actor to anticipate how the framework changes classification, creating a risk of circumvention. The dummy word contains no scale and cannot produce that result.

Some headings and placements were retained when they would disclose how the controlled elements fit together. Other administrative headings, approval entries, and histories were produced. The determination was based on whether the contextual proposition revealed implementation, not simply whether it shared a page.

The fully withheld decision trees concentrate Condition-Aster and Sequence-Beryl relationships across their organization. The current matrix similarly concentrates Value-Cinder relationships. DOE submits that controlled review confirms why isolated fragments from those records either expose structure or lack independent informational value.

Controlled Human-Safety Theory

Role-Dovetail marks an assignment category, Safety-Echo a safety-reference category, and Channel-Fable a communication category. DOE identified their authentic counterparts during review of the decision, matrix, and coordination families. The labels here show types and placement without revealing a real assignment or contact.

DOE's predicted harm is targeted interference with people performing protective functions. Where an authentic role is linked to a safety classification or controlled coordination relationship, disclosure could assist a person seeking to disrupt that human function. Exemption 7(F) does not require DOE to name the individuals placed at risk.

The safe samples also show that DOE did not treat every occurrence alike. A neutral publication sentence could be released even if Role-Dovetail appeared elsewhere on the page. A segment expressing the relationship among Role-Dovetail, Safety-Echo, and Channel-Fable remained controlled.

Open Grid says the functional description is insufficiently concrete. DOE responds that the declaration identifies the protected human function and the kind of interference while the controlled page displays the relation. Further public elaboration would disclose more of the very structure for which protection is claimed.

Summary of the 7(F) Showing

The seventh semantic division fixes DOE's categorical explanation for review. The category is not "all cyber-response information." It consists of documented relationships in which Role-Dovetail is associated with Safety-Echo, Channel-Fable, or both within a protective exercise function.

Reviewers derived the group from individual records. Decision-tree segments link the function to response organization. Matrix segments link it to a safety classification. Coordination-appendix segments link it to a controlled communication type. The contexts vary, but DOE asserts the same reasonable expectation of interference with people performing protective work.

The agency released administration that did not reveal those relationships. Edition names, effective dates, general recordkeeping, and portions of coordination text appear publicly. The supplemental passages provide further examples. DOE therefore rejects the premise that the 7(F) category automatically absorbs a document.

The Court can examine the inert associations without learning any operational content. DOE asks it to find that the document-derived functions and predicted interference supply an adequate factual basis for 7(F), even though no threatened person is identified by name.

Family-by-Family Results

The two fully withheld decision trees comprise thirty-four pages. Their controlled organization is built around Condition-Aster and Sequence-Beryl types, with Role-Dovetail and Safety-Echo appearing in certain human-function segments. The current eighteen-page decision tree and superseded sixteen-page edition were both retained to prevent comparison of their arrangements.

The exercise and quality-review decision records were partially disclosed. Their public portions include status, revision, and quality-administration text. Controlled relationships remain omitted. The renewed review later cleared additional nonoperational passages.

The twenty-page current escalation matrix was withheld entirely because Value-Cinder and related classification structures permeate it. The eighteen-page superseded matrix and sixteen-page exercise matrix allowed partial disclosure. Safety-Echo and Role-Dovetail appear where DOE invokes 7(F).

All three coordination appendices were partially released. General stewardship and archival language could be separated, while asserted assignment, safety, and communication relationships remained controlled. The two governance records were disclosed in full. DOE offers this range of results as evidence that its review followed function rather than title.

Final Segregation Protocol

Reviewers evaluated every page for self-contained administrative statements and for contextual disclosures created by headings or placement. They examined whether a caption retained meaning after a controlled relation was removed and whether a neutral descriptor could be separated from Role-Dovetail, Safety-Echo, or Channel-Fable.

The supplemental pass released seventeen passages from eleven images: six double-passage images and five single-passage images. Those additions concerned approval, review ownership, revision context, archival direction, neutral headings, and general coordination. None exposed the controlled relationships.

DOE characterizes the correction as proof that its process responds to closer analysis. The operative production incorporates the results. Reviewers retained only material they concluded was intertwined with a protected relation or too fragmentary to convey information.

The public and controlled twins supply further evidence. Each page addresses corresponding subjects, but independent wording prevents the public copy from becoming a decoding device. DOE submits that this record is sufficiently detailed to support the ultimate segregability conclusion without publishing the labels or their asserted relationships.

Complete-Withholding Review

DOE gave special attention to GS-DT-4.2, GS-DT-3.7, and GS-EM-4.2 because no source page was produced. Reviewers considered title material, revision information, headers, administrative notes, and other possible excerpts. The indexes publicly disclose the title, edition, date, length, and general function of each record.

Within the documents, placement and organization carry the asserted meaning. A heading can reveal which Condition-Aster type governs a Sequence-Beryl relationship. A caption can reveal where Value-Cinder applies. Removing labels while preserving those structural cues would not protect the implementation.

Other proposed fragments repeated facts already disclosed and conveyed nothing additional about agency conduct. FOIA does not require production of disconnected words that have no informational value. DOE therefore retained the three documents after the supplemental pass.

The controlled in-camera materials present the Court with a safe structural account. They do not reproduce an actual decision tree or matrix. DOE asks the Court to use that presentation to test the declaration rather than infer that a complete withholding is unsupported solely because it is complete.

Basis for Restricted Judicial Access

The controlled twins are judicial records submitted to decide the motions. DOE has provided an open motion, public counterparts, and notice of the request to seal. It considered selective redaction within controlled copies, but that method would remove the semantic relations the Court is asked to inspect.

The asserted interest is preservation of the modeled category relationships during adjudication. The proposed duration extends through final resolution and any appeal, with reconsideration available by order or motion. DOE does not request closure of unrelated docket materials.

Pairing is a less restrictive alternative to sealing every version. Members of the public can read the factual and legal arguments, see the approved notices, and understand what categories are disputed. Authorized reviewers can inspect the inert labels and corresponding subjects.

DOE asks the Court to maintain the controlled set together because each pair participates in the same comparison protocol. It submits that the defined scope, public alternatives, and limited litigation purpose justify that treatment. All material remains fictional and non-actionable notwithstanding the access designation.

Requested Judgment and Certification

DOE requests summary judgment on the adequacy of its final production. It asks the Court to uphold the described 7(E) implementation and guideline categories, the human-safety relationships under 7(F), and the completed segregation analysis.

DOE further requests continued sealed treatment of the controlled counterparts for the stated duration, while their public partners remain on the open docket. The agency contends that this arrangement permits meaningful scrutiny and protects the asserted relations with less closure than withholding all discussion.

Corin Pell certifies that this filing uses only Condition-Aster, Sequence-Beryl, Value-Cinder, Role-Dovetail, Safety-Echo, and Channel-Fable. Those words were invented for the exercise and carry no technical, personal, or operational content. No authentic system or response information appears.

Service was made through the fictional docket on Tamsin Roe and Leo Marr on October 27, 2025. DOE asks that the Court decide only the synthetic evidence and draw no inference concerning a real agency or program.